

MATTER OF SILVEIRA

21PR8357

MOTION TO COMPEL ANSWERS TO DEPOSITION QUESTIONS AND TO AMEND PRIVILEGE LOG; MOTION FOR SANCTIONS FOR FAILURE TO CONDUCT DEPOSITION

I. MOTION TO COMPEL ANSWERS TO DEPOSITION QUESTIONS AND TO AMEND PRIVILEGE LOG

This matter includes four consolidated probate petitions and one related civil complaint. On September 8, 2023, petitioner Audrey Petrecevich took the deposition of attorney Steven Cottrell (previous counsel for decedent Carolyn Silveira in a dissolution action). During the deposition, the deponent made it clear that he would not answer any questions regarding the purpose of his meetings and communications with Carolyn or Francille Peters (Carolyn's daughter whom Mr. Cottrell says was authorized to speak for Carolyn) unless a court ordered him to do so.

The Separate Statement filed in conjunction with this motion, sets out five questions where Mr. Cottrell was instructed not to answer the question:

- 1. Did she tell you why she wanted a divorce?**
- 2. So there was a meeting with Carolyn Silveira and Francille Peters that you testified about where all three were present. What was the purpose of that meeting.**
- 3. And was Carolyn Silveira able to provide you that information [to identify the marital assets]?**
- 4. What about those discussions do you remember [concerning the availability of \$500,000 to settle the claim]?**
- 5. This was a big deal, wasn't it? Okay. You had discussions. Okay. You remember those discussions. Okay. Let me ask you what you remember about those discussions [again concerning the source of the \$500,000 to settle the claims].**

The Evidence Code provides three express exceptions to the attorney-client privilege when, as here, the client has passed away:

Evidence Code section 957: There is no privilege under this article as to a communication relevant to an issue between parties all of whom claim through a deceased client, regardless of whether the claims are by testate or intestate succession, nonprobate transfer, or inter vivos transaction.

Evidence Code section 960: There is no privilege under this article as to a communication relevant to an issue concerning the intention of a client, now deceased, with respect to a deed of conveyance, will, or other writing, executed by the client, purporting to affect an interest in property.

Evidence Code 961: There is no privilege under this article as to a communication relevant to an issue concerning the validity of a deed of conveyance, will, or other writing, executed by a client, now deceased, purporting to affect an interest in property.

The attorney-client privilege is a legislative creation that courts have no power to limit unless expressly provided by statute. Evidence Code sections 956 through 962, describe eight exceptions to the attorney-client privilege. Where none of these exceptions applies, the privilege is absolute and disclosure may not be ordered, without regard to relevance, necessity or any particular circumstances peculiar to the case. (See *O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC* (2019) 42 Cal. App. 5th 546.) "The attorney-client privilege, however, may be waived only by the holder of the privilege... As relevant here, the holder is the client, a guardian or conservator of the client, or the personal representative of the client if the client is deceased... The privilege is not waived when the client's agent discloses a privileged communication without the client's authorization." (*DP Pham, LLC v. Cheadle* (2016) 246 Cal.App.4th 653, 668.)

Surmise and supposition are insufficient Evidence Code Sections 960 and 961 establish two related exceptions to the attorney-client privilege concerning a deceased client's writing affecting an interest in property. These exceptions provide that the attorney-client privilege does not protect a communication relevant to an issue (1) "concerning the intention of a client, now deceased, with respect to a deed of conveyance, will, or other writing, executed by the client, purporting to affect an interest in property" (Evid. Code § 960); or (2) "concerning the validity of a deed of conveyance, will, or other writing, executed by a client, now deceased, purporting to affect an interest in property" (Evid. Code § 961; *DP Pham, LLC, supra*, at p. 672).

These exceptions to the attorney-client privilege for deceased clients are limited to the types of communications to which an ordinary attesting witness would testify; they are not wholesale exceptions for all communications concerning the attested document or related transaction (*DP Pham, LLC, supra*, at p. 673). There is no waiver of the right to ask any related follow-up questions, but the petitioner must develop some factual showing that Evidence Code Section 960 and/or 961 applies.

Motion to Compel Answers to Deposition Questions and to Amend Privilege Log is GRANTED. Attorney Cottrell is ordered to answer the five questions and any appropriate follow up questions.

II. MOTION FOR SANCTIONS FOR FAILURE TO CONDUCT DEPOSITION

After a conference call on Friday, October 20, 2023, between all counsel a proposed deposition schedule for the parties' depositions was confirmed. An email was circulated with dates, times, and locations.

A great deal of emphasis is placed on the fact that the deposition of David Silveira Jr. was to be taken "November 21, 2023 (all day) to be taken either in Arizona or via zoom." Although notices were exchanged by e-mail and mail, the Silveira, Jr. deposition was not taken off calendar until the day preceding.

If the party giving notice of a deposition fails to attend or proceed with it, the court. shall impose a monetary sanction against that party, or the attorney for that party, or both, and in favor of any party attending in person or by an attorney, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP §2025.430.)

The executor argues that CCP Section 2025.430 does not apply because the deposition was noticed to be taken "either in Arizona or via zoom" and without citing authority expresses "[a] Zoom deposition cannot be attended in person by a party or attorney."

CCP § 2025.310(b) provides:

* * *

(b) Subject to Section 2025.420, any party or attorney of record may, but is not required to, be physically present at the deposition at the location of the deponent. If a party or attorney of record elects to be physically present at the location of the deponent, all physically present participants in the deposition shall comply with local health and safety ordinances, rules, and orders.

Motion for sanctions is GRANTED. In awarding discovery sanctions, Counsel incurred reimbursable travel costs in the amount \$919.92. As to the requested attorney's fees, the Court first notes the going hourly rate in this community is \$300. Additionally, travel time for counsel will be awarded at a reduced rate of \$100 per hour. The Courtb also notes that despite objections as to the timeliness of the deposition notice, counsel and the deponent were fully prepared to proceed and noticing counsel's expression that he was "inclined" to reschedule was insufficient to take the deposition off calendar.

The **awarded attorney's fees total \$2,410** (10 hours at \$100 for travel time, 1.5 hours at \$300 for deposition preparation and client meeting, 3 hours at \$300 for the motion, and the \$60 filing fee). With the awarded travel costs, total sanctions are \$3,329.92, to be paid by Petitioners Audrey Petrecivich and Manuel Silveira to counsel for Objectors forthwith.

The Clerk shall provide notice of this Ruling to the parties forthwith. Objectors to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

ESTATE OF DeREIS

10PR7129

MOTION TO COMPEL

On August 21, 2023, Deborah Burke ("Burke") served plaintiffs/cross-defendants DeReis ("DeReis") form interrogatories and request for production of documents. Initial responses were served ; thereafter, despite promises to further respond, the petitioner claims that no supplemental responses have been served. The Motion To Compel was served on November 21, 2023.

DeReis filed a Response/Opposition to the Motion to Compel with copies of e-mails showing attachments constituting supplemental responses denominated as case number 21CV45133.

The procedural presentation of the discovery issues and parallel discovery in the related case, as well as new counsel substituting for the moving party, is convoluted. The Court will order that irrespective of any Form Interrogatory responses previously provided in either related matter, responses without objection based on "previously provided" answers will be provided within thirty days of notice of this order. The court questions the efficacy of an objection based on assertions that questions have been "asked and answered" or "previously answered."

The Separate Statement in Support of Motion to Compel filed Nov. 21, 2023, sets forth a continuing Response to Form Interrogatories that "Object as previously answered . . ." When matters are related, as here, discovery sent in one matter must be responded to fully and appropriately, even if the requests and responses fully mirror those in the other matter.

Motion to compel is GRANTED. Cross-defendants DeReis are ordered to serve verified responses, without the objection of "already previously been answered [in a related matter]", within 30 (thirty) days..

The court does not award sanctions as it does not deem either party a prevailing party.

The Clerk shall provide notice of this Ruling to the parties forthwith. Burke to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.